

SOLVED PRACTICE WORKBOOK

Fundamental Duties - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Fundamental Duties	
REFRESHED TEACHING NAVIGATION — BASIC/CORE FIRST	
01	CONSTITUTIONAL PLACEMENT, ORIGIN AND HISTORICAL CONTEXT The 42nd Amendment inserted ten clauses in 1976 after the Swaran
02	EXACT TEXT AND EXAM-READY MEANING OF ALL ELEVEN DUTIES Each clause has an exact addressee and object; clause (k) applies
03	LEGAL CHARACTER: WHAT ARTICLE 51A CAN AND CANNOT DO The legal character of Article 51A is non-justiciable and
04	RIGHTS-DUTIES-DPSP RELATIONSHIP The three Parts are complementary but cannot substitute for one
05	NATIONAL SYMBOLS: RESPECT WITHOUT COMPELLED CONFORMITY Bijoe Emmanuel, Naveen Jindal and Shyam Narayan Chouksey
06	HARMONY, COMMON BROTHERHOOD AND DIGNITY OF WOMEN Harmony laws operate through exact statutory offences and remain
07	COMPOSITE CULTURE, SCIENTIFIC TEMPER AND EXCELLENCE Composite culture, scientific temper and excellence are open-textured
08	ENVIRONMENT AND COMPASSION FOR LIVING CREATURES Environmental and animal-welfare effects arise through Article 21
09	PUBLIC PROPERTY, NON-VIOLENCE AND DEMOCRATIC PROTEST The PDP Act and ordinary criminal process require proof of defined
10	EDUCATION: ARTICLE 21A, ARTICLE 45 AND ARTICLE 51A(K) Article 21A covers free compulsory education ages 6-14, Article 45
11	DUTY-BY-DUTY OPERATIONALISATION Duty-by-duty operationalisation maps each Article 51A clause to civic
12	J.S. VERMA COMMITTEE, 1999 Constituted in 1998, its 30 January 1999 Interim Report addressed the
13	CRITICISM, COUNTERARGUMENTS AND GRADED REFORM A constitutionally graded reform distinguishes precise harmful

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Fundamental Duties - Solved Practice Workbook

BASIC MCQS / REMEDIATION

Original hard MCQs

Answer placement follows strict A -> B -> C -> D rotation, repeated six times.

Q1. With reference to the constitutional history of Fundamental Duties, which statement is correct?

- A. The Swaran Singh Committee recommended eight duties, while the 42nd Amendment enacted ten.
- B. The 42nd Amendment enacted only the eight duties proposed by the Committee.
- C. The original Constitution contained ten duties in Part IV.
- D. The 86th Amendment inserted Part IVA for the first time.

Answer: A.

Explanation: The original Constitution omitted a citizen-duty chapter. Part IVA and ten duties came through the 42nd Amendment; clause (k) came through the 86th Amendment.

Q2. Which one of the following is part of Article 51A(a)?

- A. To preserve the rich heritage of composite culture
- B. To respect the Constitution's ideals and institutions, the National Flag and National Anthem
- C. To protect sovereignty, unity and integrity
- D. To abjure violence and safeguard public property

Answer: B.

Explanation: Sovereignty is Article 51A(a), composite culture is Article 51A(f), and public property/non-violence is Article 51A(i).

Q3. Consider the following pairs:

1. Article 51A(e) - harmony, common brotherhood and dignity of women
2. Article 51A(g) - environment and compassion for living creatures
3. Article 51A(h) - scientific temper, humanism, inquiry and reform
4. Article 51A(b) - defence of the country and national service

Which pairs are correctly matched?

- A. 1 and 2 only
- B. 2, 3 and 4 only
- C. 1, 2 and 3 only
- D. 1, 2, 3 and 4

Answer: C.

Explanation: Defence and national service are Article 51A(d). Article 51A(b) concerns the noble ideals of the freedom struggle.

Q4. Which statement most accurately describes Article 51A(k)?

- A. It directs the State to provide early childhood care until age six.
- B. It automatically criminalises every failure of school attendance.
- C. It grants every parent a judicially enforceable right to a neighbourhood private school.
- D. It places on a parent or guardian the duty to provide opportunities for education to a child or ward aged six to fourteen.

Answer: D.

Explanation: Article 45 addresses early childhood; Article 21A is the State-side right; 51A(k) is the parent/guardian opportunity duty.

Q5. Which is the safest legal statement about Fundamental Duties?

- A. They are non-justiciable and non-self-executing, but valid laws may operationalise them.
- B. Every clause becomes an offence when a court declares it important.
- C. They override Fundamental Rights during public controversy.
- D. They bind citizens and foreigners identically.

Answer: A.

Explanation: Article 51A itself supplies no general offence or direct writ remedy. Operationalising laws remain rights-bound.

Q6. A statute restricts speech and claims to further harmony under Article 51A(e). What follows?

- A. Judicial review is excluded because Swaran Singh recommended exclusion.
- B. The duty may inform purpose/reasonableness, but the restriction must still fit Article 19 and satisfy constitutional review.
- C. Article 51A creates a new restriction ground beyond Article 19(2).
- D. The duty automatically validates the statute.

Answer: B.

Explanation: The rejected Committee recommendation cannot displace judicial review. Duties support but do not replace the rights inquiry.

Q7. What is the correct reading of Bijoe Emmanuel?

- A. Article 51A(a) was declared unconstitutional.
- B. Section 3 of the National Honour Act compels every person to sing.
- C. Respectful standing without singing, based on sincere conscience, was protected under Articles 19 and 25.
- D. No person ever needs to show respect when the Anthem is played.

Answer: C.

Explanation: The children stood respectfully and did not disrupt others. The Court protected conscience and expression.

Q8. Naveen Jindal held that:

- A. flying the Flag is outside Article 19(1)(a).
- B. the Flag Code alone can impose criminal punishment.
- C. Flag display is absolute and cannot be regulated.
- D. respectful Flag display is protected expression, subject to lawful restrictions and respect requirements.

Answer: D.

Explanation: The right is qualified. Statutes regulate misuse; the executive Flag Code cannot by itself create Article 19 restrictions as law.

Q9. What is the current control from the final Shyam Narayan Chouksey order of 9 January 2018?

- A. Playing the Anthem before feature films in cinemas is optional/directory, not mandatory.
- B. Every cinema must play it before every film without exception.
- C. The 2016 interim order remains the final rule.
- D. Respect is unnecessary if cinema operators choose to play it.

Answer: A.

Explanation: The 2018 final order expressly modified the 2016 interim mandate while retaining lawful respect obligations.

Q10. The importance of AIIMS Students' Union for Fundamental Duties is that it:

- A. made all duties directly enforceable.
- B. described duties as valuable guides and aids to constitutional/legal interpretation despite non-enforceability.
- C. created a Fundamental Right to institutional preference.
- D. held excellence superior to equality in every case.

Answer: B.

Explanation: The judgment used Article 51A(j) interpretively; it did not transform duties into writ-enforceable commands.

Q11. Which is accurate about the official 11 September 2024 Durga Dutt order?

- A. It enacted a comprehensive duty code.
- B. It held that citizen awareness is a substitute for all legislation.
- C. It requested a synopsis of Central and State enactments effectuating facets of Article 51A and relisted the matter.
- D. It finally dismissed the petition and declared duties irrelevant.

Answer: C.

Explanation: Claims about final enforceability or dismissal overstate the written record. The separation-of-powers concern arose at hearing.

Q12. Which chain correctly describes criminal liability connected with a Fundamental Duty?

- A. Moral classification -> judicially invented punishment
- B. Article 51A allegation -> immediate conviction
- C. Government circular -> offence without statutory authority
- D. Valid penal law -> proved statutory ingredients -> procedure and trial -> punishment

Answer: D.

Explanation: Duties do not replace legality, offence definition, evidence or procedure.

Q13. Which set contains verified present-law examples most directly connected with harmony/national integration?

- A. BNS sections 196 and 197; RPA sections 123(3) and 123(3A)
- B. RTE section 10 and Article 50
- C. Flag Code and Article 45
- D. BNS section 106(2) and Article 110

Answer: A.

Explanation: BNS 196/197 cover group enmity and prejudicial assertions; the RPA provisions govern specified electoral appeals/hostility.

Q14. What is the present official short title of the 1980 forest-conservation statute?

- A. Forest Rights and Duties Code, 1980
- B. Van (Sanrakshan Evam Samvardhan) Adhiniyam, 1980
- C. Indian Forest Harmony Act, 1980
- D. National Forest Duties Act, 1980

Answer: B.

Explanation: Use the renamed official title; "Forest (Conservation) Act" is the former title.

Q15. Which statement correctly integrates the 2014 and 2023 animal-welfare cases?

- A. The 2023 Bench held cruelty lawful whenever culture is claimed.
- B. The 2023 Bench held Article 51A(g) unconstitutional.
- C. The 2014 case gave strong compassion-based weight; the 2023 Bench upheld amended State regimes and required strict compliance.

- D. The 2014 judgment permanently barred legislative amendment.

Answer: C.

Explanation: Cultural claims do not excuse statutory cruelty; the 2023 decision rested on changed laws/rules and compliance.

Q16. With reference to Article 51A(i), which statement is best?

- A. Public property damage is punishable directly under Article 51A.
- B. Peaceful dissent is inconsistent with the duty to abjure violence.
- C. Every protest affecting traffic is violence.
- D. Defined damage may be prosecuted under the PDPP Act, while lawful non-violent dissent remains protected.

Answer: D.

Explanation: Individual liability requires proof under law. The duty is anti-violence, not anti-protest.

Q17. Which is the correct education triad?

- A. Article 21A: State/right ages 6-14; Article 45: State/early childhood under 6; Article 51A(k): parent/guardian opportunity ages 6-14.
- B. Article 21A: parent duty; Article 45: criminal offence; Article 51A(k): State right.
- C. Article 51A(k) applies only to schools.
- D. All three are directly enforceable Fundamental Rights.

Answer: A.

Explanation: The 86th Amendment distributed distinct roles; they must not be collapsed.

Q18. Which statement about the J.S. Verma Committee is correct?

- A. It recommended replacing all eleven duties with penal offences.
- B. It emphasised curriculum, teacher training, media, awareness and compliance with existing laws.
- C. It was the Swaran Singh Committee under a new name.
- D. It added clause (k) in 1999.

Answer: B.

Explanation: Clause (k) came through the 86th Amendment in 2002. The Verma Committee operationalised teaching.

Q19. Which is the most defensible reading of scientific temper under Article 51A(h)?

- A. The State may criminalise any faith claim without legislation.
- B. Courts must decide every scientific controversy.
- C. It promotes evidence, inquiry, humanism and reform while remaining bounded by rights and valid law.
- D. It is identical to professional scientific employment.

Answer: C.

Explanation: Scientific temper is a constitutional civic disposition, not a state monopoly over thought.

Q20. "Composite culture" in Article 51A(f) is best understood as:

- A. only monuments declared nationally important.
- B. a ban on cultural evolution.
- C. one official culture replacing regional traditions.
- D. a plural, layered heritage shaped by interaction, requiring preservation without homogenisation.

Answer: D.

Explanation: The word "composite" is central and supports plural constitutional citizenship.

Q21. Article 51A(j) is most accurately described as:

- A. a duty to strive toward excellence in individual and collective activity so the nation rises to higher endeavour and achievement.
- B. a command that merit always defeats equality.
- C. a penal rule against poor performance.
- D. a guarantee of admission to an institution of national importance.

Answer: A.

Explanation: *AllMS Students' Union* used the clause interpretively; it creates no automatic entitlement or punishment.

Q22. Which comparative statement is correct?

- A. India copied a Soviet justiciable duty code verbatim.
- B. The USSR is the conventional source, but India's duties are adapted, non-justiciable and embedded in a rights-based democracy.
- C. Every democracy contains an identical citizen-duty chapter.
- D. The duties were borrowed from the United States Bill of Rights.

Answer: B.

Explanation: Source and legal design must be separated.

Q23. Which reform package best avoids the risks of blanket justiciability?

- A. Allow courts to create offences case by case.
- B. Criminalise every vague duty immediately.
- C. Civic education, precise legislation, proportionality, institutional example and enforcement of existing laws.
- D. Remove all Fundamental Rights when a duty is invoked.

Answer: C.

Explanation: Graded operationalisation preserves civic force without open-ended coercion.

Q24. Which statement is fully correct?

- A. The RTE Act makes Article 51A(k) an automatic parental offence.
- B. *Durga Dutt* finally made duties justiciable.
- C. The National Honour Act criminalises every refusal to sing.
- D. Duties may guide interpretation and support valid laws, but cannot by themselves override rights or create offences.

Answer: D.

Explanation: This is the package's enforceability firewall.

Remedial MCQs for common errors

Correct options rotate strictly A -> A -> B -> D, repeated twice.

R1. How many Fundamental Duties currently exist?

- A. Eleven
- B. Ten
- C. Eight
- D. Twelve

Answer: A.

Explanation: Ten were inserted in 1976; clause (k) made eleven in 2002.

R2. Which is not an enumerated Fundamental Duty?

- A. To develop scientific temper
- B. To pay taxes

- C. To preserve composite culture
- D. To safeguard public property

Answer: B.

Explanation: Tax payment was a rejected Swaran Singh recommendation, though valid tax law is binding.

R3. Fundamental Duties apply constitutionally to:

- A. only parents and guardians
- B. all persons everywhere
- C. citizens of India
- D. only public servants

Answer: C.

Explanation: Clause (k) has the narrower parent/guardian addressee, but Article 51A generally addresses citizens.

R4. Which clause protects environment and compassion for living creatures?

- A. 51A(f)
- B. 51A(h)
- C. 51A(e)
- D. 51A(g)

Answer: D.

Explanation: Clause (g) names forests, lakes, rivers, wild life and compassion.

R5. Bijoe Emmanuel protects:

- A. respectful non-singing based on conscience, not disruption or insult.
- B. a right to prevent others singing.
- C. destruction of the Flag as expression.
- D. compulsory singing in every institution.

Answer: A.

Explanation: The students stood respectfully and were protected under Articles 19 and 25.

R6. The final 2018 Shyam Chouksey rule made cinema-hall Anthem playing:

- A. criminally prohibited
- B. optional or directory
- C. compulsory
- D. a Fundamental Right

Answer: B.

Explanation: Do not use the superseded 2016 interim mandate as current law.

R7. The Verma Committee:

- A. recommended exactly eight duties in 1976
- B. enacted the RTE Act
- C. operationalised teaching/awareness and identified existing legal routes; it did not add duties
- D. inserted Part IVA

Answer: C.

Explanation: Swaran Singh belongs to 1976; Verma to the 1998-99 education project.

R8. Article 51A(k) is best read with:

- A. Articles 32 and 226 only
- B. Articles 50 and 51
- C. Article 368 only

- D. Articles 21A and 45 plus the RTE Act

Answer: D.

Explanation: These form the education right-directive-duty triad.

PYQS AND ANSWER PRACTICE

Verified supporting previous-year questions

Supporting Prelims PYQ 1. UPSC 2020 GS-I Q8 - UDHR principles across constitutional Parts

Routing ownership: Polity 08 - Directive Principles. Included here only as a cross-topic/supporting PYQ because statement 3 expressly tests Fundamental Duties.

Other than the Fundamental Rights, which of the following parts of the Constitution of India reflect/reflects the principles and provisions of the Universal Declaration of Human Rights (1948)?

1. Preamble
 2. Directive Principles of State Policy
 3. Fundamental Duties
- A. 1 and 2 only
 - B. 2 only
 - C. 1 and 3 only
 - D. 1, 2 and 3

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D (high confidence).

Explanation: The Preamble's justice, liberty, equality and fraternity; Part IV's social-economic commitments; and Part IVA's dignity, tolerance, education and humanist duties all reflect UDHR values. "Reflect" does not mean verbatim incorporation. The local repository holds the official question paper but no readable official 2020 key.

Supporting Prelims PYQ 2. UPSC 2025 GS-I Q55 - Constitutional provision matched to Part

Routing ownership: Polity 08 - Directive Principles. Included here only as a cross-topic/supporting PYQ because pair II is Article 51A(f).

Consider the following:

Provision in the Constitution of India	Stated under
I. Separation of Judiciary from the Executive in the public services of the State	The Directive Principles of State Policy
II. Valuing and preserving the rich heritage of our composite culture	The Fundamental Duties
III. Prohibition of employment of children below the age of 14 years in factories	The Fundamental Rights

How many of the above pairs are correctly matched?

- A. Only one
- B. Only two
- C. All the three
- D. None

OFFICIAL LOCAL UPSC KEY VERIFIED: C.

Explanation: Pair I is Article 50 in Part IV; Pair II is Article 51A(f) in Part IVA; Pair III is Article 24 in Part III. The local official Set-A key was directly raster-checked and records Q55 as C.

Original Mains practice with model solutions

M1. Fundamental Duties are non-justiciable, but not constitutionally inert. Explain. (10 marks, 150 words)

Model solution. Thesis: Article 51A creates eleven citizen duties without a direct writ remedy or general penalty, yet the duties operate through interpretation, legislation, institutions and civic education.

First, duties guide constitutional meaning. In *All India Students' Union* (2001), the Supreme Court called them a valuable aid to interpretation; Article 51A(j) informed the evaluation of institutional excellence. This proves interpretive weight, but the case did not make duties directly enforceable.

Second, precise laws operationalise defined conduct. The National Honour Act, 1971 protects the Constitution, Flag and Anthem; the PDPP Act, 1984 addresses public-property damage; environmental statutes support Article 51A(g); and the RTE Act, 2009 gives a framework around clause (k).

Third, duties cannot override rights. *Bijoe Emmanuel* protected children who stood respectfully but did not sing the Anthem under Articles 19 and 25.

Conclusion: Fundamental Duties are constitutional norms with mediated legal effects. Their legitimate force comes from rights-compatible law and civic internalisation, not automatic punishment.

Why this earns marks: It resolves the apparent paradox, gives four named statutory/case examples, states the criminal-liability and rights limits, and reaches a precise verdict.

How to improve this answer: In the exam, compress the first paragraph to one line, group statutes by symbols, public property and environment, and reserve the last two lines for the difference between interpretive weight and direct enforceability.

M2. What does the national-symbol jurisprudence reveal about the relationship between patriotism, expression and Fundamental Duties? (10 marks, 150 words)

Model solution. Thesis: Indian national-symbol jurisprudence protects respectful patriotism while rejecting the assumption that only one compelled performance proves loyalty.

In *Bijoe Emmanuel* (1986), Jehovah's Witness children stood respectfully but did not sing the Anthem. Their expulsion violated Articles 19(1)(a) and 25(1). Article 51A(a)'s duty of respect therefore did not mean compulsory singing, especially when there was no disruption.

In *Naveen Jindal* (2004), respectful display of the Flag was held to be expression under Article 19(1)(a), subject to lawful restrictions and the National Honour Act. The Flag Code's respect norms were relevant, but executive instructions could not independently supply Article 19 restrictions.

Finally, *Shyam Narayan Chouksey* (2018) modified the 2016 cinema mandate: playing the Anthem became optional/directory, while lawful respect obligations continued.

Conclusion: Constitutional patriotism joins freedom with respect; neither contempt nor compelled conformity defines citizenship.

Why this earns marks: It uses the full three-case chronology, identifies exact holdings, distinguishes statute from executive code and answers the conceptual relationship rather than listing cases.

How to improve this answer: Use a three-row case table-conduct, right, limit-and expressly state that section 3 punishes intentional prevention or disturbance, not every refusal to sing.

M3. Analyse the constitutional design of education through Articles 21A, 45 and 51A(k). (15 marks, 250 words)

Model solution. Thesis: The 86th Amendment created a responsibility triad: an enforceable child right against the State, a directive for early childhood, and a citizen duty on parents/guardians.

Right: Article 21A requires the State to provide free and compulsory education to all children aged six to fourteen in the manner determined by law. The RTE Act, 2009 supplies schools, admission, standards and public-authority duties. This establishes education as a public obligation, not a private charity.

Directive: Substituted Article 45 directs the State to endeavour to provide early childhood care and education until age six. It fills the developmental stage outside Article 21A's age band but remains non-justiciable as a DPSP.

Duty: Article 51A(k) requires a parent or guardian to provide opportunities for education to a child/ward aged six to fourteen. RTE section 10 requires admission or causing admission to neighbourhood elementary education.

Analysis: The design is complementary: State supply makes parental opportunity meaningful; parental participation supports attendance; early-childhood policy prepares the child. It would be constitutionally distorted to punish poor parents while schools, transport or disability access are absent.

Qualification: Clause (k) is not an automatic penal offence and cannot shift the State's Article 21A burden onto families.

Conclusion: The triad constitutionalises shared responsibility, but State capacity and inclusion remain the foundation.

Why this earns marks: It separates addressee, age, legal character and statute; analyses interaction; adds a poverty/access qualification and gives a graded verdict.

How to improve this answer: Draw the education triad first, then attach one delivery gap-school access, disability support or migration-to show why parental duty cannot displace State capacity.

M4. Article 51A(g) has converted environmental protection from a State programme into a shared constitutional ethic. Discuss with judicial and statutory evidence. (15 marks, 250 words)

Model solution. Thesis: Article 51A(g) makes ecology and compassion citizen duties, but effective protection emerges from its interaction with Article 48A, Article 21, statutes and administration.

Shared design: Article 48A directs the State; 51A(g) addresses citizens; environmental Article 21 jurisprudence supplies a rights dimension. This distributes prevention, participation and remedy.

Statutory evidence: The Environment (Protection) Act, 1986 gives umbrella Central powers; the Wild Life (Protection) Act, 1972 protects species and habitats; the Van (Sanrakshan Evam Samvardhan) Adhiniyam, 1980 regulates forest-land use. These laws define standards and liability that Article 51A alone lacks.

Judicial evidence: In *M.C. Mehta* (1991), the Supreme Court connected environmental duty with awareness, directing educational curricula and media messages. In *Animal Welfare Board v. A. Nagaraja* (2014), the Court gave compassion and animal welfare strong interpretive weight.

Current qualification: The 2023 Constitution Bench upheld amended Jallikattu regimes, holding that changed laws/rules addressed earlier defects and directing strict enforcement. Thus 2014 cannot be cited as an immutable ban on legislative redesign.

Conclusion: Article 51A(g) supplies constitutional motivation and interpretation; statutes, education and accountable enforcement produce actual environmental outcomes.

Why this earns marks: It gives the three-Article mechanism, three statutes, two case stages and the essential 2023 qualification rather than an outdated one-case answer.

How to improve this answer: Limit statutory description to one clause each, spend more space on the 2014-to-2023 legal change, and close with the division between constitutional ethic and statutory liability.

M5. Should Fundamental Duties be made justiciable? Give a constitutionally graded answer. (15 marks, 250 words)

Model solution. Thesis: Defined harmful conduct should be enforceable through precise law, but blanket justiciability of all Article 51A clauses would be constitutionally unsafe.

Case for enforcement: Duties protect national symbols, harmony, ecology, public property and education. Existing statutes show that sanctions can improve deterrence: the National Honour Act, PDPP Act, environmental laws and the RTE framework.

Risks: Many clauses are open-textured - "noble ideals," "composite culture," "scientific temper" and "excellence." Turning them directly into offences would violate legality, invite selective enforcement and allow political majorities to label dissent disloyal. It could also add extra grounds to Article 19 and make courts define culture and patriotism.

Rights evidence: *Bijoe Emmanuel* proves that a duty to respect cannot override conscience and expression. *Naveen Jindal* shows that regulation must be lawful and rights-compatible.

Institutional evidence: The 1999 Verma Committee preferred curriculum, teacher training, media, awareness, NGO monitoring and existing-law compliance. The official *Durga Dutt* order of 11 September 2024 merely sought a synopsis

of operationalising laws; it did not judicially create enforceability.

Way forward: civic education, precise statutes for concrete harm, proportionality, due process, institutional example and better enforcement.

Conclusion: Operationalise duties selectively; do not constitutionalise a general loyalty code.

Why this earns marks: It answers "should" with a graded verdict, balances deterrence and coercion, uses four named authorities and links each reform to a diagnosed risk.

How to improve this answer: Organise the body as enforceable harms versus open-textured values; state that Durga Dutt remains pending, and link each sanction to legality, competence and proportionality.

M6. "Rights, Directive Principles and Fundamental Duties are distinct parts of one constitutional project." Critically examine. (20 marks, 300 words)

Model solution. Thesis: The three Parts distribute constitutional agency: Part III restrains public power and protects persons; Part IV directs the State toward justice; Part IVA asks citizens to sustain common constitutional goods. They are complementary, not interchangeable.

Rights as means and limits: Articles 14, 19, 21 and 25 protect equal citizenship, expression, life and conscience. *Bijoe Emmanuel* demonstrates the firewall: respectful non-singing could not be punished merely by invoking respect for the Anthem.

DPSP as State purpose: Part IV directs welfare, environment and education. Article 48A pairs with 51A(g); Article 45 pairs with 21A and 51A(k). These links show coordinated design rather than isolated chapters.

Duties as citizen agency: Harmony, composite culture, scientific temper, public-property care and excellence identify conduct needed for constitutional democracy. *AIIMS Students' Union* confirms interpretive value; *M.C. Mehta* shows education-based operationalisation.

Legislative conversion: The National Honour Act, environmental statutes, PDPP Act and RTE Act translate selected fields into standards. However, their validity derives from competent, rights-compliant law, not Article 51A alone.

Critical limits: Part IVA's Emergency origin, vagueness and citizens-only reach caution against coercion. Duties cannot add Article 19 restriction grounds or become a majoritarian cultural test. Conversely, treating them as decorative ignores statutory and interpretive effects.

Verdict: The project is balanced constitutionalism: rights protect agency, DPSP set collective ends and duties encourage responsible participation. Harmony exists only when rights discipline the means and duties remain plural, lawful and proportionate.

Why this earns marks: It builds a three-part constitutional mechanism, uses six named provisions/cases/statutes, includes criticism and prevents both duties-supremacy and duties-irrelevance errors.

How to improve this answer: Use a Part III-IV-IVA triangle and one paired example each for environment and education; cut catalogue-style case listing and make rights-compatible means the evaluative test.

M7. Do Fundamental Duties create active citizenship, or can they become instruments of majoritarian conformity? Evaluate. (20 marks, 300 words)

Model solution. Thesis: Fundamental Duties can deepen active citizenship when read through liberty, equality and fraternity; detached from those values, vague duty language can become a conformity test.

Active-citizenship potential: Article 51A moves citizens beyond spectatorship. Clause (e) asks for fraternity across religious, linguistic, regional and sectional differences; (g) creates ecological care; (h) promotes inquiry and reform; (i) protects shared property and non-violence; (k) makes education a shared responsibility. The Verma Committee's curriculum, teacher-training and media programme gives these values a participatory route.

Constitutional patriotism: Clause (a) attaches respect to the Constitution and its institutions, not to an incumbent government. *Naveen Jindal* protects positive patriotic expression. *Bijoe Emmanuel* protects respectful conscience. Together they locate loyalty in a free constitutional order.

Majoritarian risk: "Noble ideals," "composite culture" and "scientific temper" are open to capture. A dominant group may define its own ritual, history or belief as the only patriotic form. Emergency provenance intensifies the concern. Blanket penalties would burden minority conscience, dissent and cultural pluralism.

Safeguards: precise legislation, Article 19/25 review, proportionality, anti-discrimination, public-reasoned institutions and plural civic education. Composite culture should mean interaction, not assimilation; harmony should protect difference, not silence it.

Conclusion: Duties create democratic citizenship only when they discipline power as well as citizens. Their mature form is responsible freedom, not enforced sameness.

Why this earns marks: It directly evaluates both possibilities, covers six clauses, uses Verma plus two cases, develops the advanced patriotism argument and ends with a constitutional criterion rather than a generic way forward.

How to improve this answer: Pair each citizenship gain with its conformity risk, use Bijoe Emmanuel as the controlling minority-conscience example, and make plural civic education-not penal loyalty-the final recommendation.